

GDPR Selected Articles (Excerpt)

Overview

This document contains selected excerpts from the General Data Protection Regulation (Regulation (EU) 2016/679) for educational and compliance simulation purposes.

These excerpts focus on:

- Core data protection principles
 - Lawful processing
 - Right to erasure
 - Security of processing
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Article 5 — Principles Relating to Processing of Personal Data

1. Personal data shall be:

(a) Lawfulness, Fairness, and Transparency

Processed lawfully, fairly, and in a transparent manner in relation to the data subject.

(b) Purpose Limitation

Collected for specified, explicit, and legitimate purposes and not further processed in a manner incompatible with those purposes.

(c) Data Minimisation

Adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.

(d) Accuracy

Accurate and, where necessary, kept up to date; reasonable steps must be taken to erase or rectify inaccurate data without delay.

(e) Storage Limitation

Kept in a form which permits identification of data subjects for no longer than necessary for the purposes for which the personal data are processed.

(f) Integrity and Confidentiality

Processed in a manner ensuring appropriate security, including protection against unauthorised or unlawful processing, accidental loss, destruction, or damage.

2. Accountability

The controller shall be responsible for, and be able to demonstrate compliance with, paragraph 1 ("accountability principle").

Article 6 — Lawfulness of Processing

Processing shall be lawful only if and to the extent that at least one of the following applies:

Legal Basis	Description
Consent	The data subject has given clear consent for specific processing.
Contract	Processing is necessary for performance of a contract.
Legal Obligation	Processing is required to comply with a legal obligation.
Vital Interests	Processing is necessary to protect someone's life.
Public Task	Processing is necessary for public interest or official authority.
Legitimate Interests	Processing is necessary for legitimate interests, unless overridden by fundamental rights of the data subject.

Controllers must document the legal basis for each processing activity.

Article 17 — Right to Erasure ("Right to be Forgotten")

1. The data subject shall have the right to obtain erasure of personal data without undue delay where one of the following grounds applies:

- The personal data are no longer necessary for the original purpose.
- The data subject withdraws consent and no other legal ground applies.
- The data subject objects to processing and there are no overriding legitimate grounds.
- The data have been unlawfully processed.
- Erasure is required for compliance with a legal obligation.

2. Exceptions to Erasure

Erasure does not apply where processing is necessary for:

- Exercising the right of freedom of expression and information.
 - Compliance with a legal obligation.
 - Public interest in public health.
 - Archiving, research, or statistical purposes.
 - Establishment, exercise, or defense of legal claims.
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Article 32 — Security of Processing

1. Taking into account:

- State of the art
- Cost of implementation
- Nature, scope, context, and purpose of processing
- Risk likelihood and severity

The controller and processor shall implement appropriate technical and organisational measures to ensure a level of security appropriate to the risk.

2. Measures May Include:

- Pseudonymisation and encryption of personal data
- Ability to ensure confidentiality, integrity, availability, and resilience
- Ability to restore availability and access in a timely manner
- Regular testing and evaluation of security effectiveness

3. Risk Considerations

Risk includes:

- Accidental or unlawful destruction
 - Loss or alteration
 - Unauthorised disclosure
 - Access to personal data transmitted, stored, or processed
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Accountability & Documentation Requirements

Controllers must:

- Maintain records of processing activities
 - Document lawful basis
 - Conduct Data Protection Impact Assessments (DPIA) where high risk exists
 - Demonstrate compliance during regulatory inspections
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Compliance Mapping Example

GDPR Article	Enterprise Control Area
Article 5	Data Governance & Retention Policy
Article 6	Consent Management & Legal Basis Registry
Article 17	Data Deletion & Archival Policy
Article 32	Information Security & Access Control Policy

Disclaimer:

This excerpt is provided for educational and system-design purposes only and does not constitute legal advice.
Refer to the official GDPR text for authoritative legal interpretation.